

25NWLC51459 25NWLC51459

County: los-angeles

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Case Number: 25NWLC51459 Hearing Date: July 30, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff Creditors Adjustment

Bureau, Inc.'s Motion for Order for

Terminating Sanctions, Striking Defendant's Answer and Entering Default;

Request for Monetary Sanctions is granted. The Court strikes Defendant Norberto

Ochoa's Answer filed on 11/12/2025 but does not enter default or award

Defendant monetary sanctions.

Order to Show Cause Regarding Entry of Default and Default Judgment is set for 08/27/2026 at 9:30 am in Department 26 at the Spring Street Courthouse.

Analysis:

On September

8, 2025, Plaintiff Creditors Adjustment Bureau, Inc. ("Plaintiff") filed this

action against Defendant Norberto Ochoa ("Defendant"). Defendant, in propria persona, filed an Answer on November 12, 2025.

On March 12, 2026, the Court granted Plaintiff's (1)

Motion to Compel Responses to First Set of Special Interrogatories; Request for

Monetary Sanctions; and (2) Motion to Compel Responses to First Set of Requests

for Production of Documents; Request for Monetary Sanctions, against Defendants with respect to service of responses. (Minute Order, 03/12/26.) The Court ordered Defendant to

serve verified discovery responses within 20 days' service of the order. (Ibid.)

Notice of the ruling was mailed to Defendant on March 16, 2026. (Notice of

Ruling, filed 03/16/26.)

On May 6, 2026, Plaintiff filed the instant Motion for Order for Terminating Sanctions, Striking Defendant's Answer and Entering Default; Request for Monetary Sanctions. Plaintiff served the Motion on Defendant by electronic and first-class mail on the same day. No opposition has been filed to date.

Discussion

Plaintiff seeks an order striking Defendant's Answer under Code of Civil Procedure section 2023.030, pursuant to which the Court may impose a terminating sanction by one of the following orders:

(1)

An order striking out the pleadings or parts of the pleadings of any party engaging in the misuse of the discovery process.

(2)

An order staying further proceedings by that party until an order for discovery is obeyed.

(3)

An order dismissing the action, or any part of the action, of that party.

(4)

An order rendering a judgment by default against that party.

(Code Civ. Proc., § 2023.030, subd. (d).) Where a party willfully disobeys a discovery order, courts have the discretion to impose terminating, issue, evidence or monetary sanctions. (Code Civ. Proc., §§ 2023.010, subds. (d), (g); *R.S. Creative, Inc. v. Creative Cotton, Ltd.* (1999) 75 Cal.App.4th 486, 495.) The court should look at the totality of the circumstances in determining whether terminating sanctions are appropriate. (*Lang v. Hochman* (2000) 77 Cal.App.4th 1225, 1246.) Ultimate discovery sanctions are justified where there is a willful discovery order violation, a history of abuse, and evidence showing that less severe sanctions would not produce compliance with discovery rules. (*Van Sickle v. Gilbert* (2011) 196 Cal.App.4th 1495, 1516.) "[A] penalty as severe as dismissal or default is not authorized where noncompliance with discovery is caused by an inability to

comply rather than willfulness or bad faith.” (Brown v. Sup. Ct. (1986)
180 Cal.App.3d 701, 707.)

As set forth above, on March 12, 2026, the Court
granted Plaintiff’s discovery motions, and ordered Defendant to serve responses
within 20 days’ service of the order. (Motions, Omrani Decl., ¶6 and Exh. 2.)
Notice of the ruling was served on Defendant on March 16, 2026. (Ibid.) As of the filing of the instant Motion,
however, Defendant has not served responses to the discovery requests. (Id.
at ¶7.)

Under the above authority, terminating sanctions are
warranted for Plaintiff’s non-compliance with the discovery orders. Despite
notice of the discovery motions, service of the Court’s orders, and service of
the instant Motion for sanctions, Plaintiff has not served responses as ordered
nor filed any opposition to explain its disregard of its discovery obligations
and the Court’s order. Defendant’s
repeated refusal to engage in the discovery process demonstrates that their
compliance with the Court’s orders cannot be achieved through lesser sanctions.
Although terminating sanctions are a harsh penalty, “[t]he court [is] not
required to allow a pattern of abuse to continue ad infinitum.” (Mileikowsky
v. Tenet Healthsystem (2005) 128 Cal.App.4th 262, 280.) When a party fails to respond to discovery, fails
to comply with orders to respond to discovery, and then does not respond to a
motion for terminating sanctions, it establishes a pattern of abuse that the Court
has no basis to conclude will cease. Accordingly,
the Court strikes Defendant’s Answer. However, it does not enter Defendant’s
default, which is not an authorized action under the moving statute.

Plaintiff also moves for monetary sanctions under
subdivision (a) of the moving statute, on account of Defendant’s misuse of the
discovery process. (Code Civ. Proc., § 2023.030, subd. (a).) Failing to respond
to an authorized method of discovery, especially in light of the Court’s
orders, is a misuse under Code of Civil Procedure section 2023.010. (Code Civ.
Proc., § 2023.010, subd. (d).) Plaintiff moves for an award of \$1,873.82, which
the Court finds excessive. (See Motion, Omrani Decl., ¶8.) Moreover, the
terminating sanctions sufficiently address the abuse of the discovery process.

Conclusion

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Bureau, Inc.’s Motion for Order for

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Moving party to give notice.